

Court No. - 29

Case :- WRIT - C No. - 31476 of 2019

Petitioner :- Veer Pal Rajpoot

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pawan Kumar Tiwari

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard learned counsel for the petitioner and Sri Krishna Agarwal, learned counsel for the respondents No. 4 and 5.

The petitioner by means of this writ petition is challenging the recovery proceedings whereby a sum of Rs.4,77,326/- plus others are being recovered as electricity dues.

The submission is that certain deposits made by the petitioner have not been taken into account and that the petitioner may be allowed to make the payment in instalments.

For the purpose of instalments the petitioner may approach the Executive Engineer in accordance with the Clause 6.14 of the U.P. Electricity Supply Code, 2005. The Executive Engineer would consider the adjustment also and if necessary may fix instalments.

Accordingly, the petition is disposed off with liberty to the petitioner to approach the Executive Engineer concerned within a period of three weeks from today. In the event any representation is made, the Executive Engineer shall consider it in accordance with law most expeditiously if possible within a month thereafter.

The Writ Petition is **disposed off**.

Order Date :- 1.10.2019

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